REAL ESTATE PROFESSIONALS NETWORK | MEMBER RESOURCE

Fair Housing Compliance Guide

Practical Guidance for Every Member

Revised August 2026 | 36 pages | Legal Affairs

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REPN

1. Core Principles

The Fair Housing Act prohibits discrimination in the sale, rental, and financing of housing based on race, color, national origin, religion, sex, familial status, and disability. State and local laws frequently add protected classes, including source of income, age, and marital status.

Compliance is not merely avoiding explicit refusal. Steering, selective advertising, inconsistent application of criteria, and neutral policies with disproportionate impact all create liability.

2. Advertising and Marketing

Every listing description should describe the property, never the ideal occupant. Phrases such as perfect family neighborhood, bachelor pad, or walking distance to church create exposure. Useinclusive language focused on features: fenced yard, updated kitchen, near transit.

Targeted social media advertising requires particular care. Ad delivery algorithms can exclude protected audiences even when the advertiser's intent is neutral. REPN recommends interest-based rather than demographic targeting parameters.

3. Documentation Practices

Consistency is the strongest defense. Apply the same qualification criteria to every applicant and retain records of each interaction for at least three years. When in doubt, document the business reason for every decision.

Members facing an ambiguous situation should consult the REPN Legal Hotline at (800) 555-7376, extension 4, before acting.